

OVERHAULING INDIA'S CRIMINAL LAW FRAMEWORK: A DOCTRINAL COMPARISON OF BNS 2023 WITH IPC 1860 AND ITS INTERFACE WITH BNSS AND BSA

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Abstract: This article analyzes the Bharatiya Nyaya Sanhita, 2023 (BNS), which represents a significant overhaul of India's substantive criminal law and is set to supplant the Indian Penal Code, 1860 (IPC), as of 1 July 2024. Employing doctrinal and comparative methodologies, the study delineates key structural and substantive changes, with a focus on (i) the reduction of the penal code to 358 sections, (ii) the establishment of specific offenses such as organised crime (Sections 111–112) and terrorist acts (Section 113), (iii) the substitution of the sedition law with Section 152, addressing acts that threaten India's sovereignty, unity, and integrity, and (iv) the reorganization and enhancement of victim-focused offense categories, particularly those concerning women and children. Additionally, the paper scrutinizes the broader reform measures—Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) and Bharatiya Sakshya Adhiniyam, 2023 (BSA)—to explore how digitized procedures, mandatory forensic protocols, and digital-evidence guidelines may interact with the BNS's framework of offenses. It posits that the BNS significantly updates the taxonomy of offenses and sentencing alternatives, including community service, but cautions that the broad language in national-security provisions and potential overlaps with special statutes (e.g., UAPA) could exacerbate discretionary enforcement unless checked by constitutional doctrines and institutional safeguards. The paper offers recommendations for interpretive, prosecutorial, and capacity-building measures to ensure the implementation of measures consistent with rights.

Keywords: Bharatiya Nyaya Sanhita; Indian Penal Code; criminal law reform; Section 152; organised crime; terrorism; BNSS; Bharatiya Sakshya Adhiniyam; community service; constitutional safeguards.

1 INTRODUCTION

India's criminal justice reform for 2023–24 is remarkable in its breadth: the IPC is being replaced by the BNS, while the CrPC and Evidence Act are being substituted with the BNSS and BSA, respectively, with the changes set to take effect on 1 July 2024. The BNS (Act No. 45 of 2023) consolidates and updates substantive criminal law, reorganising offences into 20 chapters and 358 sections, and removing numerous colonial-era references. The Government's goal is to establish a justice-oriented, citizen-centric framework that addresses contemporary criminality and bolsters victim rights. According to the PRS Bill analysis, the BNS largely retains IPC offences but introduces community service as a form of punishment, adds new offences, such as terrorism and organised crime, and replaces sedition with a sovereignty-related offence. These changes position the BNS as both a symbolic decolonization effort and a practical attempt to adapt the penal code to a technologically mediated society. [1–3]

Concurrently, the reform is unfolding within a constitutional landscape shaped by decades of jurisprudence on free speech, public order, and state security. The Supreme Court's restrictive interpretation of sedition in *Kedar Nath Singh v State of Bihar* limited criminalization to speech that incited violence or disorder, reflecting the constitutional requirement that restrictions on speech be justified under Article 19(2). More recently, in *S.G. Vombatkere v Union of India*, the Supreme Court suspended proceedings under Section 124A of the IPC while the government reconsidered the sedition provision, indicating institutional concern about misuse and chilling effects. In parallel, free-speech jurisprudence in *Shreya Singhal v Union of India* invalidated vague speech restrictions in the digital realm and highlighted the constitutional issues of overbreadth and uncertainty. These judicial baselines are crucial for evaluating whether Section 152 BNS, though formally distinct from sedition, risks replicating sedition-like effects through broad drafting. [4–6]

This paper, therefore, investigates: (i) the most significant doctrinal changes from IPC to BNS; (ii) how new offence categories (terrorism, organised crime, group-murder/mob violence, deceit-based sexual intercourse) will influence enforcement incentives and prosecutorial strategy; and (iii) what safeguards are necessary to ensure that enhanced state capacity does not erode constitutional liberties. In its analysis, the study clarifies an important point: BNS is primarily substantive law, whereas many headline reforms concerning digitization, timelines, and forensics are operationalized in BNSS and BSA. A credible impact assessment must, therefore, distinguish between doctrinal change (BNS) and procedural/evidence change (BNSS/BSA), and then evaluate their interaction effects. [1,2,7–11]

2 LITERATURE REVIEW AND RESEARCH GAP

Early comparative scholarship characterizes the BNS as a measure for consolidation and modernization, aimed at reducing sections, updating language, and introducing targeted offenses and reformatory sanctions. For instance, Jacob's comparative note and Moolchandani's overview describe the BNS as consolidating the penal code, adding offenses related to terrorism, organised crime, and mob lynching, and introducing community service as a form of punishment. Similarly, PRS notes that, although most IPC offenses are retained, the BNS introduces new offense categories and reorganises provisions. However, these descriptive accounts often fail to thoroughly explore constitutional risks and overlaps with special statutes. [3,19,20] A more critical body of literature challenges the 'decolonization' claim, cautioning that Section 152 may maintain the logic of sedition by shifting the focus from "disaffection against government" to "endangering sovereignty, unity, and integrity," potentially enabling the broad criminalization of dissent. Singh's article and Ravi's constitutional blog argue that vague and open-textured terms like "subversive activities" can perpetuate discretionary policing and chilling effects. This critique aligns with the constitutional problem of vagueness identified in *Shreya Singhal* and the narrow incitement standard set out in *Kedar Nath*. Yet, the critical literature often isolates Section 152 and does not systematically connect it with other BNS innovations (e.g., terrorism and organised crime provisions) and the procedural/evidentiary package (BNSS/BSA). [5,6,21–23,28] Another set of scholarship focuses on specific thematic clusters. Regarding gender-related offenses, Shrivastava and Akhter demonstrate that recodification invites a reassessment of gender

justice and inclusivity in the design of offenses. Contemporary commentaries on BSA highlight the expansion of digital records and certification regimes and the continued relevance of Supreme Court doctrine on electronic evidence. In terms of sentencing, community service scholarship situates the new punishment within a reformatory/restorative turn, linking it to prison overcrowding and earlier reform proposals. However, the literature remains fragmented across themes and often lacks a unified framework that connects doctrinal change, constitutional safeguards, and implementation capacity. [10–12,15–18,29–33] Accordingly, the research gap this paper addresses is integrative: it synthesizes structural and doctrinal changes across BNS chapters, situates state-security drafting within a constitutional context, and evaluates system-level effects within the BNSS/BSA reform environment. The contribution is a consolidated analytical model for assessing whether recodification advances rights-consistent justice delivery or risks strengthening coercive capacity without adequate checks. [1–3,7–11]

3 METHODOLOGY

This paper employs a doctrinal legal research methodology, which encompasses (a) an in-depth analysis of the BNS statutory text and structure, (b) a provision-by-provision comparison with key counterparts in the IPC, and (c) a synthesis of secondary scholarship and official explanatory materials. To contextualize the practical implications, the paper also examines analyses of the PRS bill and official documents that elucidate procedural and evidentiary reforms under the BNSS and BSA. The doctrinal approach is particularly apt because BNS's main contributions lie in reclassification, definitional drafting, and sentencing design, all of which can be assessed through textual analysis and constitutional doctrine. While the paper does not claim to empirically measure enforcement outcomes, it identifies testable hypotheses and implementation indicators for future empirical research. [1–3,7–11]

4 FROM IPC TO BNS: STRUCTURAL REORGANISATION AND LEGISLATIVE PHILOSOPHY

4.1 Consolidation and readability

The BNS revises the penal code by reducing the number of sections from 511 in the IPC to 358. This reduction is accomplished by merging similar provisions, reorganising chapters for thematic consistency, and eliminating outdated language. This consolidation is widely regarded as enhancing accessibility for both citizens and legal professionals while reducing interpretive fragmentation. For example, PRS emphasizes the consolidation and the introduction of community service, while explanatory materials focus on the restructured chapter order and increased penalties for certain offences. Similarly, the NCERT module portrays BNS as modernizing offences and penalties, yet maintaining the core structure of the IPC. These changes are not merely superficial; the consolidation also affects prosecution strategies by grouping offences, which could potentially reshape the dynamics of charge framing and plea bargaining. [1–3,25,26]

4.2 Decolonisation narrative and ‘nyaya’ framing

The reform package is frequently characterized as a shift from ‘dand’ (punishment) to ‘nyaya’ (justice), with a pronounced focus on justice centered around victims, the integration

of technology, and the reduction of delays. Official communications, such as those from the PIB, underscore the significance of keeping victims informed, digital reporting, and bolstering forensic capabilities, although many of these components are implemented through BNSS rather than BNS. Academic analyses and training materials outline the timelines for investigation and trial phases, highlighting the importance of procedural efficiency and transparency. These narratives are pivotal as they shape the interpretive framework that courts and agencies might employ when applying new provisions; however, they also risk obscuring the tension between rights and security, particularly when national security offenses are broadly defined. [2,8,9,25,27]

4.3 The reform package and the necessity of system thinking

An important takeaway from comparative criminal justice reform is that simply recodifying substantive laws rarely yields faster or fairer outcomes unless the quality of investigations, evidence rules, and judicial capacity are aligned. In India, the BNSS introduces technology-enabled systems such as e-FIR and zero-FIR, along with victim information rights, electronic proceedings, and the compulsory use of forensic evidence for serious crimes. The BSA updates the evidentiary rules to classify digital records as documents and to organise the admissibility of electronic evidence, which is essential for proving cyber-enabled offenses and digital communications involved in Section 152 and other offenses. Therefore, evaluating the impact of BNS requires considering the BNS-BNSS-BSA triad as a cohesive system: offense definitions dictate what needs to be proven; procedures outline how investigations are conducted; and evidence law determines what courts can rely on. [7–12]

5 KEY SUBSTANTIVE INNOVATIONS IN BNS AND THEIR IMPLICATIONS

5.1 Section 152: ‘acts endangering sovereignty, unity and integrity.’

The BNS has eliminated IPC Section 124A (sedition) and introduced Section 152, which criminalizes intentional or knowing actions through words, signs, visible representation, electronic communication, or financial means that incite or attempt to incite secession, armed rebellion, or subversive activities, promote separatist activities, or otherwise threaten India’s sovereignty, unity, and integrity. The provision also clarifies that lawful criticism aimed at achieving change through legal means, without inciting prohibited activities, does not constitute an offense. The official text (as reproduced in statutory compilations) thus seeks to recognize legitimate dissent while broadening the modes of commission to include electronic and financial means—an explicit acknowledgment of digital-era mobilization and funding. [1,3,28]

The constitutional evaluation of Section 152 must begin with Kedar Nath’s narrowing principle: the criminalization of state-security speech is constitutionally permissible when restricted to incitement to violence or disorder, not mere criticism. The abeyance order in Vombatkere underscores the judiciary’s sensitivity to the misuse of sedition-like provisions. Shreya Singhal provides an additional test: vague and overly broad drafting can chill protected speech and fail the reasonableness requirement. Against this backdrop, the risk in Section 152 lies in open-ended terms such as “subversive activities” and “encourages feelings of separatist activities,” which can be interpreted expansively unless narrowed in line with incitement and proximate-causation requirements. Critical scholarship argues that, despite

removing the word “sedition,” Section 152 may preserve the underlying logic of power. Therefore, a rights-consistent interpretive approach would treat the explanation as a substantive safeguard and require evidence of a proximate link to violence or public disorder. [4–6,21–23]

5.1.1 Early post-commencement judicial guidance (2024)

The judiciary's engagement with Section 152 began soon after its enactment. In the case of *Tejender Pal Singh @ Timma v State of Rajasthan* (Rajasthan High Court, 16 December 2024), the Court reviewed a petition seeking to annul an FIR that cited Sections 152 and 197(1)(c) BNS, prompted by a social media post. The Court emphasized that speech restrictions must be narrowly tailored, requiring a direct and immediate link between the speech in question and the risk of rebellion or secession; legitimate dissent should not be conflated with anti-nationalist behavior. This ruling thus offers an early interpretive framework that protects rights under Section 152 and stresses the importance of proximate-incitement thresholds in prosecutorial decisions. [36]

The application of Section 152 is also contingent on procedural and evidentiary limitations. Given that Section 152 explicitly covers electronic communication and financial means, investigations are expected to rely significantly on digital evidence. Although the technology provisions of the BNSS and BSA may improve documentation, they also enhance the state's capacity to collect and present digital evidence. The Supreme Court's prior emphasis on strict adherence to electronic evidence admissibility standards (e.g., certificate-based systems, as demonstrated in *Anvar*) remains relevant as the BSA updates its electronic evidence rules. Consequently, issues of rights and reliability converge: strong evidentiary authentication can prevent false or manipulated digital claims, while a narrow constitutional interpretation can avert the criminalization of dissent. [8–12]

5.2 Terrorist act (Section 113) and overlap with UAPA

The BNS introduces a statutory definition of a 'terrorist act' under Section 113. As outlined in the PRS summary, terrorism is characterized by acts intended to threaten unity, integrity, security, or economic security, or to instill terror. Meanwhile, the bare act places Section 113 under offenses affecting the human body. This marks a significant doctrinal shift, as, traditionally, definitions of terrorism and related procedures have been primarily governed by special legislation such as the Unlawful Activities (Prevention) Act, 1967 (UAPA), which defines terrorist acts and specifies investigation and procedural modifications. Integrating terrorism into the general penal code could standardize charging practices, but it also introduces potential overlap and forum shopping, as agencies might opt between BNS and UAPA based on perceived evidentiary thresholds and procedural advantages. PRS notes that overlap with special laws can lead to multiple regulatory regimes and inconsistent penalties. [1,3,13]

Thus, a thorough analysis should compare BNS Section 113 with Chapter IV of the UAPA. The UAPA provides a comprehensive framework for terrorist acts and penalties, as well as investigative powers and presumptions applicable in specific contexts. If BNS Section 113 is applied in situations also covered by the UAPA, questions arise about legislative intent, prosecutorial discretion, and safeguards. From a constitutional standpoint, overly

broad definitions of terrorism can threaten Article 19(1)(a) and (b) rights if applied to protest or association; however, courts often uphold security laws when applied with strict mens rea and evidentiary thresholds. Therefore, this paper recommends that the invocation of BNS terrorism provisions be guided by clear internal guidelines, avoiding casual use and ensuring alignment with constitutional proportionality and procedural fairness. [3,13,16]

5.3 Organised crime (Section 111) and petty organised crime (Section 112)

The BNS introduces the terms 'organised crime' and 'petty organised crime' (Sections 111–112), establishing a unified legislative framework for syndicate-based, ongoing illegal activities. This development is noteworthy because, until now, organised crime has been managed through state-specific statutes such as the Maharashtra Control of Organised Crime Act (MCOCA) and the Gujarat Control of Terrorism and Organised Crime Act (GCTOC), alongside general IPC provisions and special laws. According to PRS, organised crime includes activities such as kidnapping, extortion, and cybercrime carried out on behalf of a syndicate, with commentary indicating that 'economic offences' also fall under this category. Research on Section 111 suggests that centralising the offence could promote uniformity but also poses enforcement challenges, particularly in distinguishing genuine syndicates from occasional group offences. [1,3,14,23,24]

Concerns about overlap remain significant. State laws addressing organised crime often feature special evidentiary rules, extended detention, or special courts; for instance, GCTOC is a special statute designed to prevent and control terrorist acts and organised crime syndicates. A central BNS offence could coexist with state laws, leading to questions about concurrent jurisdiction and charging strategies. The PRS compilation of GCTOC provides definitions that align with BNS's 'continuing unlawful activity' and 'organised crime syndicate,' suggesting legislative borrowing and convergence. To ensure constitutional compliance, organised crime provisions must be applied with due process and clear thresholds to avoid criminalising poverty-linked or informal group activities. This is crucial because 'organised crime' can result in severe penalties and may involve aggressive investigation methods under procedural law. [14,35]

5.4 Offences against women and children and gender justice

The BNS reorganizes offences against women and children into an early consolidated chapter, which the government portrays as being centered on victims and prioritizing their protection. PRS acknowledges the retention of fundamental sexual offences but also draws attention to ongoing debates, such as the marital rape exception and the issue of gender neutrality. Academic work on gender-related provisions suggests that recodification offers a chance for a more inclusive approach that addresses gender inequality and recognizes the vulnerabilities of LGBTQIA+ individuals. At the very least, consolidation can enhance legal literacy and enforcement focus; however, true deterrence also relies on procedural certainty, forensic capacity, and victim support—areas that are only partially addressed by BNSS (e.g., victim updates) and systemic reforms. The recommendations of the Justice Verma Committee remain a benchmark for evaluating whether legislative changes align with gender justice objectives. [2,3,7,17,18]

5.5 Sentencing innovation: community service as punishment

A notable enhancement to the BNS punishment framework is the formal recognition of 'community service' as a specified punishment in Section 4. This represents a significant shift from the IPC's punishment taxonomy, which did not officially include community service, although courts occasionally imposed service-like penalties during sentencing or through their inherent powers. Policy discussions and academic research suggest that community service aligns with reformatory and restorative justice principles, can alleviate prison overcrowding, and offers a proportional response to minor offenses. However, empirical concerns persist: without clear operational guidelines, community service may be applied inconsistently and risk becoming merely symbolic. The broader literature on penal reform and reports on Indian prison reform underscore the importance of alternatives to incarceration, particularly given the challenges of overcrowding and the burden of undertrials. Historical committees, such as the Mulla Committee, have also examined corrections and community engagement. Therefore, community service should be implemented as a structured sanction that necessitates administrative infrastructure, monitoring, and equitable access. [1,2,15,29–33]

5.6 Expanded jurisdiction and technology-facing scope

In addition to introducing new offense categories, the BNS offers crucial clarification on the extraterritorial scope concerning cyber-enabled crime and transnational offenses. The commencement and application clause extends liability to Indian citizens living abroad, individuals on Indian-registered ships or aircraft, and—most critically—those outside India who commit offenses targeting a computer resource located within India. This legislative update aligns substantive criminal law with the digital landscape, where actions and harm frequently transcend international borders. It also bolsters the BNSS and BSA's initiatives for electronic reporting, digital records, and electronic proceedings, thereby facilitating the investigation and prosecution of cross-border digital offenses. However, the expanded jurisdiction necessitates greater reliance on mutual legal assistance, digital forensics, and cross-border evidence preservation—areas in which limited capacity can undermine both effectiveness and fairness. To address these challenges, investigators should prioritize the provenance, authenticity, and chain of custody for digital materials, applying the stricter admissibility standards reflected in Supreme Court electronic evidence jurisprudence and BSA's certification regime. [1,10–12]

6 IMPACT PATHWAYS: HOW BNS CHANGES MAY AFFECT THE CRIMINAL JUSTICE SYSTEM

6.1 Charging incentives, policing discretion, and pre-trial effects

Substantive law drives systemic change chiefly through the charging process by introducing new definitions of offenses. These definitions create new labels, establish penalty ranges, and set thresholds for cognizability and bail presumptions under procedural law. While the BNSS is responsible for overseeing arrest and custody, the gravity of the substantive offense often influences bail decisions, the depth of investigations, and the nature of prosecutorial negotiations. For example, broad state security offenses might result in increased preventive measures and arrests, whereas organized crime and terrorism could necessitate specialized

teams and extended investigations. PRS cautions that overlaps with special laws can lead to multiple charges and compliance issues. Consequently, the BNS may indirectly affect prison populations and court backlogs, not only by introducing new offenses but also through reclassification and penalty escalation. [3,7,13]

6.2 Investigation quality: forensics, timelines, and digital evidence

Embedded within BNSS and BSA are a series of reforms designed to accelerate and enhance the reliability of investigations. BNSS materials and PIB releases emphasize initiatives such as e-FIR, victim updates within 90 days, electronic proceedings, and mandatory forensic investigations for offenses punishable by seven years or more, including the videography of search processes. BPR&D training materials provide detailed timelines for FIR recording, preliminary inquiries, charge framing, and judgment delivery. These procedural requirements can significantly impact BNS implementation, as many BNS offenses—such as organized crime, terrorism, and state security speech via electronic means—require complex evidence and technical proof. The effective use of forensic methods can reduce wrongful implications and strengthen the integrity of convictions, but this depends on adequate laboratory capacity, a robust chain of custody, and comprehensive training. [8,9,7] BSA's focus on digital evidence further influences admissibility and proof. Overviews of BSA highlight the growing acceptance of electronic/digital records as documents and the need for clear admissibility criteria, including certification and integrity measures (e.g., hash values, signatures). Scholarship on Section 63 BSA positions it as a modernized replacement for earlier electronic evidence provisions and underscores the challenges of technical compliance. This aligns with the Supreme Court's doctrine in *Anvar*, which mandated strict conditions for the admissibility of electronic records. Ultimately, the effectiveness of BNS's technology-related offenses depends on the operationalization of BNSS and BSA within technical capacity and on the internalization of updated evidentiary standards by courts and investigators. [10–12]

6.3 Judicial workload and interpretive burdens

Recodification increases interpretive demands during transition. Courts must map old IPC provisions to new BNS sections, interpret new definitions, and set precedents for ambiguous terms. This is especially acute for Section 152, organised crime thresholds, and the boundary between BNS terrorism and UAPA. Early years of implementation may involve litigation over retrospective application, savings clauses, and the transitional handling of ongoing IPC cases. The PRS bill note and NCERT module provide pedagogic mapping, but judicial clarification will ultimately determine doctrinal stability. Therefore, judicial training and published guidance notes can reduce inconsistency and protect rights during the transition phase. [3,25,26]

6.4 Transitional and savings considerations

6.4.1 2024 High Court decisions on IPC/BNS and CrPC/BNSS transitions

Following 1 July 2024, High Courts swiftly began to address transitional legal questions. In the case of *Deepu and 4 Others v State of U.P.* (Allahabad High Court, 6 August 2024), the Court ruled that if an alleged offense occurred before 1 July 2024 but the FIR was lodged after this date, the FIR should be registered under the IPC, as it was the substantive law in

effect at the time of the offense, while the investigation would adhere to BNSS procedures. [37] In Delhi, the case of *Rahul Nagar & Ors v State of Delhi* (30 August 2024) treated a post-commencement petition filed under CrPC as one under section 528 BNSS, noting that section 531(2)(a) BNSS preserves CrPC procedures only for matters pending immediately before the BNSS came into force. [38] Similarly, a Punjab & Haryana High Court order dated 11 July 2024 in CRM-M-31808-2024 illustrates early judicial practice in applying the new procedural framework to petitions and proceedings involving the repeal-and-savings clause, emphasizing that parties and registries must carefully select the appropriate procedural provision in accordance with the commencement and savings rules. [39] A final system pathway involves transitioning from IPC-era cases to BNS-era prosecutions. As a fundamental principle of criminal law, substantive penal changes generally apply prospectively unless the legislature specifies otherwise, and savings clauses preserve ongoing proceedings. Since the BNS is a comprehensive replacement statute, courts and agencies must ensure the correct 'cut-off' application: FIRs and trials initiated before commencement typically proceed under IPC, while post-commencement conduct is charged under BNS. This transition is administratively complex: police station templates, charge-sheet formats, and judicial cause lists must map IPC sections to BNS equivalents, and prosecutors must avoid mixed framing that could create confusion or legal challenges. Training materials and PRS summaries can aid initial mapping, but authoritative clarification will come through appellate rulings interpreting repeal-and-savings and transitional rules. [1–3]

7 CRITICAL EVALUATION: KEY RISKS AND SAFEGUARDS

7.1 Overbreadth and vagueness in national security drafting

The expansive nature of Section 152 poses a significant threat to civil liberties. To prevent its unconstitutional application, courts should interpret it in a manner consistent with '*Kedar Nath*,' ensuring that only speech with a direct tendency to incite violence or public disorder is criminalized. The *Shreya Singhal* doctrine, which challenges vague speech offenses, further supports the need for precise definitions and narrowed interpretations. Scholars warn that, without such limitations, Section 152 risks being misused in ways similar to those of sedition laws. Although the provision that protects lawful criticism is advantageous, its effectiveness largely depends on prevailing institutional culture and prosecutors' discipline. [5,6,21–23,28]

7.2 Overlap and double-regime problems

The BNS introduces offences that overlap with special laws: terrorism overlaps with UAPA; organised crime overlaps with state statutes; cybercrime overlaps with IT Act offences; and certain economic offences overlap with financial statutes. PRS flags that different penalties or procedures across laws may lead to multiple charges and compliance burdens. From a rule-of-law perspective, overlap can create inconsistent deterrence and uncertainty, and from a rights perspective, it can enable strategic charging to access harsher procedural regimes. A policy solution is to issue charging guidelines that prioritise the most appropriate statute and avoid stacking charges unless legally necessary. [3,13,14]

7.3 Capacity constraints and unequal implementation

Even well-drafted reforms can fail if implementation capacity is uneven. BNSS's timelines and mandatory forensics require laboratory infrastructure and trained personnel; BSA's digital evidence rules require technical competence and tool support; and community service requires administrative monitoring mechanisms. India's longstanding prison and correctional reform reports highlight structural constraints such as overcrowding and weak rehabilitation infrastructure, implying that non-custodial sanctions must be designed with realistic supervision capacity. Without capacity investments, reforms may increase delay (due to forensic backlogs), produce inconsistent outcomes (due to uneven digital literacy), and exacerbate inequality (when some districts implement effectively and others do not). [9,10,15,31–33]

8 RECOMMENDATIONS

To start, establish constitutional interpretive guidelines for Section 152. Agencies should mandate supervisory approval and document the reasons for invoking Section 152 in contexts related to speech, while prosecutors should evaluate cases for incitement or proximity to violence in line with Kedar Nath. Next, formulate statutory and prosecutorial 'overlap protocols' for terrorism and organized crime: create decision matrices to decide between applying BNS or special laws like UAPA or state organized crime acts, thus reducing charge stacking. Third, prioritize capacity enhancement: expand forensic laboratories and digital evidence training; implement BPR&D timelines through digital case management; and develop standard operating procedures for BSA electronic evidence certification that are consistent with Anvar. Fourth, implement community service with defined eligibility criteria, supervision plans, and community partnerships, drawing on reformatory justice scholarship and recommendations from prison reform committees. Finally, initiate periodic reviews 24–36 months after implementation to track patterns of misuse, conviction rates, pendency, and rights outcomes, and to adjust statutory language or guidance as needed. [1,3,5,7–12,15,29–33]

9 LIMITATIONS AND FUTURE RESEARCH

This paper is doctrinal and policy-analytic rather than empirical. It does not present post-1 July 2024 statistics on FIRs, charges, bail, or convictions under BNS. Future research should use empirical methods: (i) compare charge patterns under IPC-era versus BNS-era provisions; (ii) study bail outcomes for Section 152 and Sections 111–113; (iii) evaluate forensic turnaround times and digital evidence compliance post-BSA; and (iv) assess distributional effects across states and districts. Such work will provide robust evidence on whether BNS delivers its promised balance of efficiency and rights. [2,7–11]

10 CONCLUSION

The Bharatiya Nyaya Sanhita, 2023, is a landmark recodification that consolidates India's penal code, introduces new offence categories for organized crime and terrorism, replaces sedition with a sovereignty-related offence, and expands the sentencing toolkit to include community service. These changes respond to contemporary threats and address some structural limitations of the IPC. However, the success of the BNS will depend on the

constitutionalization of interpretation and accountable enforcement, particularly for state-security offences, where overbreadth can chill dissent. The wider reform package—BNSS and BSA—creates opportunities for improved investigation and evidence handling through digitization and mandatory forensics, but also requires significant capacity investments to avoid uneven or rights-impairing implementation. Ultimately, whether the BNS advances ‘Nyaya’ will be determined by how institutions balance security with liberties, and by whether the reform infrastructure is built to make justice faster, fairer and more reliable in practice. [1–3,7–11]

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